

Form No: HCJD/C-121

ORDER SHEET

**IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT**

Case No.

Crl. Misc. No.7441/B/2015

Mudassar Ghafoor

Versus

The State etc.

S.No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge and that of Parties of counsel, where necessary.
--------------------------------	-------------------------------	---

01) 11.06.2015 Kh. Nuh Nabi Butt, Advocate with the petitioner.

Mudassar Ghafoor, the petitioner seeks pre-arrest bail in case FIR No.82 dated 19.08.2013 offences under Sections 409, 467, 468, 471, 109 PPC read with Sections 5 of Prevention of Corruption Act, 1947, as well as 36 & 37 of Electronic Transaction Ordinance, 2002, registered with Police Station FIA CCC/CBC, Lahore.

2. The prosecution story, in brief, is that with regard to the bank account of Mr. Kazim Ali Malik, three supplementary ATM cards were deceitfully got issued from HBL Mall Road Branch, Lahore, in the names of three women pretending them to be the wives of account holder and on different occasions different persons including present petitioner who thrice withdrew the amount from the said account.

3. Before advertng to the prayer made in the petition though ad-interim in nature, It has been noticed that application filed by the present petitioner before the learned court of first instance for the relief of pre-arrest bail was dismissed on 19.03.2014 and after that till today, the petitioner remained fugitive from law. Now after expiry of about fifteen months, the petitioner has come up to this Court seeking the extra ordinary relief of pre-arrest bail that is to be granted to the accused only in special circumstances. Moreover, the

petitioner has given no ground for remaining away from the process of law for such a long period as mentioned above and such an act on the part of the accused amounts to abuse of process of law. Reliance in this regard is placed on Rao Qadeer Khan v. The State (PLD 1981 SC 93). Even during the arguments, learned counsel for the petitioner has miserably failed to furnish any plausible reason for the uncalled-for conduct of the petitioner. The unexplained and unjustified period of petitioner's being fugitive from law disentitles him of the craved relief and as such, he does not merit any leniency. In such a scenario, we are of the opinion that the petitioner does not deserve the extra ordinary concession of pre-arrest bail, hence the instant petition is dismissed.

(Sayyed Mazahar Ali Akbar Naqvi) (Syed Shahbaz Ali Rizvi)
Judge Judge

APPROVED FOR REPORTING.

Judge

Judge

Nazir